IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION
WRIT PETITION (CIVIL) NO. 494 OF 2012

Justice K.S. Puttaswamy (Retd.) & Anr. ...Petitioners
VERSUS
Union of India & Ors. ...Respondents

CORAM:
HON'BLE THE CHIEF JUSTICE J.S. KHEHAR
HON'BLE MR. JUSTICE J. CHELAMESWAR
HON'BLE MR. JUSTICE S.A. BOBDE
HON'BLE MR. JUSTICE R.K. AGRAWAL
HON'BLE MR. JUSTICE R.F. NARIMAN
HON'BLE MR. JUSTICE A.M. SAPRE
HON'BLE DR. JUSTICE D.Y. CHANDRACHUD
HON'BLE MR. JUSTICE S.K. KAUL
HON'BLE MR. JUSTICE S. ABDUL NAZEER

ORDER OF THE COURT
1. This petition was instituted under Article 32 of the Constitution challenging the mandatory collection of biometric data under the Aadhaar scheme.

3. The right to privacy is protected as an intrinsic part of the right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. Privacy recognizes the autonomy of the individual and postulates that there is an inviolable space reserved for the individual.

5. The reference arose because the Union of India submitted that earlier decisions of larger benches, notably an eight-judge bench in M.P. Sharma v. Satish Chandra (1954) and a six-judge bench in Kharak Singh v. State of U.P. (1962), had held that the Indian Constitution does not confer a fundamental right to privacy.

7. The decision in M.P. Sharma, to the extent that it holds that the right to privacy is not protected by the Constitution, stands overruled. Kharak Singh, to the extent that it observed that the right to privacy is not a guaranteed right, also stands overruled.

9. Privacy is not created by the Constitution; it is an inalienable natural right which the Constitution recognizes as fundamental to human dignity.

12. Like other fundamental rights, the right to privacy is not an absolute right. An invasion of privacy by the State must be justified on the basis of a law which stipulates a procedure which is just, fair and reasonable.

14. Any state intrusion into individual privacy must satisfy the threefold requirement of legality, legitimate state aim, and proportionality under Articles 14, 19, and 21. There must be a law in existence, the law must pursue a legitimate goal, and the means adopted must be proportional to the object sought to be achieved.

16. Informational privacy forms an essential facet of personal privacy in an era dominated by electronic databases and artificial intelligence.

20. We answer the reference in the following terms:
(i) The right to privacy is a fundamental right. It is a harmonious component of Part III of the Constitution.
(ii) The decisions in M.P. Sharma and Kharak Singh stand overruled to the extent noted.
(iii) The writ petitions challenging the statutory Aadhaar scheme shall now be placed before the regular bench for disposal on merits.

Ordered accordingly.

.....CJI.
(J.S. KHEHAR)
.....J.
(J. CHELAMESWAR)
.....J.
(D.Y. CHANDRACHUD)
NEW DELHI;
AUGUST 24, 2017.